



CHAPTER ii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Edinburgh Corporation. A.D. 1916.
[17th May 1916.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Edinburgh Corporation Order Confirmation Act 1916. Short title.

A.D. 1916.

S C H E D U L E.

EDINBURGH CORPORATION.

Provisional Order to authorise the Corporation of the City of Edinburgh to make and maintain tramways and a tramroad to construct street widenings and other works to acquire lands to transfer to the Corporation the Royal Victoria Hospital for Consumption Edinburgh and the dispensary and farm colony used in connexion therewith to amend the Edinburgh Municipal and Police Acts and for other purposes.

WHEREAS the municipal and police administration of the city and royal burgh of Edinburgh and other matters connected therewith are vested in and managed by the lord provost magistrates and council thereof (herein-after called "the Corporation") under among others the Edinburgh Municipal and Police Acts 1879 to 1913:

And whereas the Corporation are the owners of the existing tramways within the city:

And whereas it is expedient and would be in the public interest that the tramways of the Corporation should be extended and that the Corporation should be authorised to make and maintain the tramways tramroad and works herein-after described and to acquire lands for the purposes thereof:

And whereas for the purpose of improving the condition of certain parts of the city and opening out the same for the more convenient conduct of traffic it is expedient that the Corporation should be authorised to make construct maintain and use the works for widenings alterations and improvements of streets and places and for the protection of the foreshore and public roadway herein-after mentioned and to acquire lands for those purposes:

And whereas estimates have been prepared by the Corporation for the purposes herein-after mentioned and such estimates are as follows:—

For and in connexion with the tramways and	£
tramroad by this Order authorised - - -	65,123
For and in connexion with the street improve-	
ments and other works by this Order authorised	14,951
For the purchase of lands - - - - -	44,764

And whereas the said works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years: A.D. 1916.

And whereas it is expedient that the Corporation should be authorised to borrow money for the construction of the tramways tramroad and works authorised by this Order and for the purchase of lands and for all or any of the other purposes of this Order and should be empowered to levy rates and assessments:

And whereas the Royal Victoria Hospital for Consumption was established at Craighleith Edinburgh in the year one thousand eight hundred and eighty-seven by voluntary effort and has since been so maintained and carried on by the trustees and committee of management thereof (herein-after called "the trustees and committee of management") under a deed of trust and the constitution and rules thereof as a sanatorium for the treatment of tuberculosis:

And whereas in connexion with the said Royal Victoria Hospital there have also been established maintained and carried on a dispensary on certain property situate in Spittal Street Edinburgh and also a farm colony on certain lands in the parish of Lasswade for convalescents (which hospital dispensary and farm colony together are in this Order referred to and comprehended within the term "Royal Victoria Hospital"):

And whereas the Corporation are the local authority within the city under the Public Health (Scotland) Acts and have also under the National Insurance Act 1911 certain administrative duties connected with the care and treatment of persons suffering from tuberculosis:

And whereas as such local authority the Corporation are carrying on a scheme for the detection treatment and care of tuberculosis and cognate diseases and for the prevention and protection of the community from the spread of such diseases and it is expedient that the Corporation should be authorised to take over and to maintain administer and carry on the Royal Victoria Hospital as part of their administration as local authority under the Public Health (Scotland) Acts and that the same should be transferred to and vested in the Corporation:

And whereas the Corporation and the trustees and committee of management have entered into the agreement set

A.D. 1916. — forth in the Third Schedule to this Order and it is expedient that the same should subject to the provisions of this Order be confirmed :

And whereas it is expedient that further powers should be conferred on the Corporation as herein-after in this Order provided :

And whereas plans and sections showing the lines and levels of the several tramways and tramroad and the street and other works authorised by this Order and the lands proposed to be taken for the purposes thereof respectively and the lands which may be taken for the other purposes of this Order and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the principal sheriff clerk of the county of Midlothian and also with the principal sheriff clerk of the county of the city of Edinburgh and the same are herein-after respectively referred to as the deposited plans sections and books of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short and
collective
titles.

1. This Order may be cited for all purposes as the Edinburgh Corporation Order 1916 and the Edinburgh Municipal and Police Acts 1879 to 1913 in conjunction with this Order may be cited as the Edinburgh Municipal and Police Acts 1879 to 1916.

PART I.

PRELIMINARY.

Division of
Order into
Parts.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Tramways and Tramroad.

Part III.—New Works.

Part IV.—Acquisition of Lands.

Part V.—Royal Victoria Hospital.

A.D. 1916.

Part VI.—Assessments Borrowing Powers and Finance.

Part VII.—Miscellaneous.

3. This Order shall (except as otherwise in this Order provided) commence and have effect on and from the date of the passing of the Act confirming this Order which date is herein-after referred to as “the commencement of this Order.”

Commence-
ment of
Order.

4. In this Order and for the purposes of this Order (unless there be something in the subject or context inconsistent with or repugnant to such construction) the several words and expressions to which meanings are assigned by the Edinburgh Municipal and Police Acts shall subject to the provisions of this Order have the same respective meanings and the words and expressions following shall have the meanings herein assigned to them viz.:—

Interpreta-
tion.

“The city and royal burgh” and “the city” respectively mean the city and royal burgh of Edinburgh according to the municipal and police boundaries thereof at the commencement of this Order;

“The Corporation” means the lord provost magistrates and council of the city and royal burgh;

“The Edinburgh Municipal and Police Acts” mean the Edinburgh Municipal and Police Acts 1879 to 1913 and this Order;

“The existing tramways” means the tramways within the city owned by the Corporation;

“The new tramways” means the tramways and tramroad authorised by this Order;

“The Corporation tramways” or “the tramways” means the existing tramways and the new tramways;

“The sheriff” means the sheriff of the Lothians and Peebles or any of his substitutes;

“Engine” includes motor;

“Mechanical power” includes electrical and every other motive power not being steam or animal power;

“The Act of 1879” means the Edinburgh Municipal and Police Act 1879;

“The Act of 1893” means the Edinburgh Improvement and Municipal and Police (Amendment) Act 1893;

A.D. 1916.

- “The Corporation Tramways Act 1893” means the Edinburgh Corporation Tramways Act 1893;
- “The Corporation Tramways Act 1896” means the Edinburgh Improvement and Tramways Act 1896;
- “The Extension Act 1896” means the Edinburgh Extension Act 1896;
- “The Act of 1897” means the Edinburgh Corporation Act 1897;
- “The Act of 1899” means the Edinburgh Corporation Act 1899;
- “The Act of 1900” means the Edinburgh Corporation Act 1900;
- “The Order of 1901” means the Edinburgh Corporation Order 1901;
- “The Order of 1905” means the Edinburgh Corporation (Tramways) Order 1905;
- “The Act of 1906” means the Edinburgh Corporation Act 1906;
- “The Order of 1908” means the Edinburgh Corporation (Tramways &c.) Order 1908;
- “The Order of 1910” means the Edinburgh Corporation Order 1910;
- “The Act of 1913” means the Edinburgh Corporation Act 1913;
- “The Corporation Tramways Acts” means the Corporation Tramways Act 1893 the Corporation Tramways Act 1896 the Act of 1897 the Act of 1899 the Act of 1900 the Order of 1905 the Act of 1906 the Order of 1908 and the Order of 1910;
- “The Public Health (Scotland) Acts” means the Public Health (Scotland) Acts 1897 to 1907 and any Acts amending or extending the same;
- “The Royal Victoria Hospital” means and includes the Royal Victoria Hospital at Craigleith Edinburgh and the lands and property connected therewith the property at Spittal Street Edinburgh used as a dispensary of the said Royal Victoria Hospital and the lands at Lasswade in the county of Midlothian used as a farm colony in connexion with the said Royal Victoria Hospital.

5. Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Part II. (Construction of Tramways) and Part III. (General Provisions) of the Tramways Act 1870 are incorporated with this Order except where the sections so incorporated are inconsistent with or are varied by this Order :

A.D. 1916.
—
Certain provisions of
Tramways
Act 1870 in-
corporated.

Provided always that section 43 (Future purchase of undertaking by local authority) of the Tramways Act 1870 shall apply to so much only of the new tramways as are situate in the county of Midlothian and that the period of forty years shall be substituted for the period of twenty-one years specified in that section :

Provided further that the provisions of Part II. and Part III. (excepting sections 34 to 40 44 45 49 to 56 63 64 and so much of sections 46 and 47 as relates to byelaws to be made by the promoters of a tramway) of the said Act shall not apply to any portion of tramroad or Tramway No. 2 which under the provisions of this Order may be constructed on private lands.

6. The Lands Clauses Acts are incorporated with and shall form part of this Order.

Incorporation of Lands
Clauses Acts.

7. Sections 6 8 to 16 and 18 to 37 60 to 68 70 to 85 and 90 to 99 (so far as the same are not repealed) of the Railways Clauses Consolidation (Scotland) Act 1845 so far as they are applicable to and are not varied by or inconsistent with the provisions of this Order are incorporated with and form part of this Order and shall apply only to such portion of tramroad or Tramway No. 2 authorised by this Order as may be constructed on private lands Provided that for the purposes of the said Act the said portion of the said tramroad or tramway shall be deemed to be a railway and the Corporation shall be deemed to be a railway company.

Incorporation of part
of Railways
Clauses Act.

PART II.

TRAMWAYS AND TRAMROAD.

8. Subject to the provisions of this Order the Corporation may construct reconstruct make form lay down work use and maintain the new tramways herein-after described in the lines and according to the levels and within the limits of deviation

Construction
of new
tramways.

A.D. 1916. shown on the deposited plans and sections with all proper rails plates works and conveniences connected therewith and may take up remove alter appropriate and use any part or parts of the existing tramways which may interfere with or be rendered unnecessary by the construction of the new tramways or some of them :

Provided that nothing in this Order shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The new tramways herein authorised are the following:—

Tramroad or Tramway No. 2 (single and double lines) the tramway part being one chain or thereabouts in length and the tramroad part being one mile 8·9 chains or thereabouts in length together being one mile 9·9 chains or thereabouts in length of which six furlongs 4·6 chains or thereabouts are single line and two furlongs 5·3 chains or thereabouts are double line situate partly in the parish of Colinton and partly in the city parish of Edinburgh commencing at a point 2·70 chains or thereabouts southwards from the line of the south side of the roadway leading to the western entrance of the City Hospital at Colinton Mains and passing thence in a south-easterly easterly and north-easterly direction along or through the lands known as Colinton Mains Oxgangs Comiston and Greenbank and crossing the roadway leading to Hunter's Tryst at a point 3·00 chains or thereabouts south from the line of the south wall of Colinton Mains Farm Steading and also the two footpaths leading to or towards Oxgangs and Comiston Farms respectively and terminating at the intersection of the said tramroad or tramway with the west boundary wall of Comiston Road at a point 9·3 chains or thereabouts south from the line of the south side or boundary of Riselaw Road :

Tramway No. 3 (double line) one furlong 3·00 chains or thereabouts in length wholly situate in the city parish of Edinburgh commencing by a junction with the

termination of Tramroad or Tramway No. 2 herein-
before described passing thence in a northerly direction
along the roadway of Comiston Road and terminating
by a junction with the existing tramway of the Corpo-
ration at the point known as Braids Terminus in the
said road 3·15 chains or thereabouts northwards from
the line of the north side or boundary of Riselaw
Road : A.D. 1916.

Tramway No. 8 (double and single lines) one mile five
furlongs 1·00 chain or thereabouts in length of which
one mile five furlongs or thereabouts are double line
and 1·00 chain or thereabouts is single line situate
partly in the city parish of Edinburgh and partly in
the parish of Corstorphine commencing by a junction
with the existing tramway of the Corporation in
Corstorphine Road at a point opposite the Gate Lodge
of the property known as Hazelbank and passing thence
along the said Corstorphine Road and continuing along
the road described upon the $\frac{1}{2500}$ Ordnance Survey
map (edition 1914) as " St. John's Road " traversing
the main street of Corstorphine and terminating at a
point 6·00 chains or thereabouts west from the line of
the west side of Templeland Road :

Tramway No. 9 (single line) 5·26 chains or thereabouts
in length wholly situate in the parish of Corstorphine
commencing by a junction with Tramway No. 8 herein-
before described at a point in the said tramway 0·40
chain or thereabouts eastwards from the east side of
Templeland Road and passing thence in a south and
south-easterly direction across the public highway there
into the field or inclosure on the east side of the foot-
path leading from the said highway to High Street
Corstorphine and terminating within the said field or
inclosure at a point 4·00 chains or thereabouts south
from the south side of the said highway described as
St. John's Road :

Tramway No. 10 (double line) 2·21 chains or thereabouts
in length being a junction or linking-up of the existing
tramways of the Corporation in Clifton Terrace (Hay-
market) and Morrison Street wholly situate in the city

A.D. 1916.
—

parish of Edinburgh commencing by a junction with the existing tramway of the Corporation in the said Clifton Terrace at a point in the said tramway 1·94 chains or thereabouts westwards from the line of the area parapet on the west side of Grosvenor Street and passing thence easterly across the existing tramway leading to Dalry Road and terminating by a junction with the existing tramway in Morrison Street there at a point in the said tramway in alignment with the east side of Dalry Road 0·6 chain or thereabouts east from the centre line of the said existing tramway:

Tramway No. 11 (double and single lines) 5·33 chains or thereabouts in length of which 4·33 chains or thereabouts are double line and 1 chain or thereabouts is single line wholly situate in the city parish of Edinburgh commencing by a junction with the existing tramway of the Corporation in Shandwick Place at a point in the said tramway 0·96 chain or thereabouts measured in a westerly direction from the west side of Queensferry Street passing thence in a north-easterly direction across the said Queensferry Street thence curving into the street known as Hope Street and terminating therein at a point 1·35 chains or thereabouts north from the north side of Hope Street Lane:

Tramway No. 12 (double line) 4·33 chains or thereabouts in length wholly situate in the city parish of Edinburgh being a junction or linking-up of the existing tramways of the Corporation in Home Street and Lauriston Place commencing at a point in line with the south side of Lochrin Terrace passing thence in a north-easterly direction across the existing tramway of the Corporation and the open space or roadway known as Tollcross and terminating by a junction with the existing tramway of the Corporation in Lauriston Place at a point 0·90 chain or thereabouts measured in an easterly direction from the centre line of Brougham Street.

The lengths of the portions of Tramroad or Tramway No. 2 which are intended to be constructed (A) along the carriageway of any street or road (B) upon any waste or open ground by

the side of any street or road and (c) upon private lands respectively and (d) the total length of the tramroad are as follows:—

		m.	f.	ch.
Length along carriageway	-	0	0	1·0
Length upon waste or open ground	-			—
Length upon private lands	-	1	0	8·9
Total length	-	1	0	9·9

9. The Corporation in constructing the Tramroad or Tramway No. 2 authorised by this Order may deviate from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown on those plans and they may deviate from the levels thereof shown on the deposited sections except where such tramroad or tramway is laid on or across any public street or road to the extent and subject to the conditions prescribed in the case of a railway by sections 11 12 and 14 of the Railways Clauses Consolidation (Scotland) Act 1845.

Power to deviate tramroad.

10. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Corporation shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Cross-overs to be constructed in certain cases.

11.—(1) The Corporation may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for providing access to any generating stations stables or carriage-houses or premises of the Corporation.

Power to make additional cross-overs and to double tramway lines.

(2) Notwithstanding anything shown on the deposited plans the Corporation may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways

A.D. 1916. — and may with the like consent at any time lay down in any position or alter the position in the road of any of the tramways or any part thereof or as the case may be take up or reconstruct the same in such positions as they may think fit.

(3) Provided that if in the construction of any works under this section any rail is intended to be laid nearer to the footpath than previously authorised in such a manner that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not except with the consent of the Board of Trade be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

New tramways to be inspected before being opened.

12. The new tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Period for completion of new tramways.

13. The new tramways shall be completed within five years from the commencement of this Order and on the expiration of that period the powers by this Order granted to the Corporation for executing the same shall cease except as to so much thereof as shall then be completed.

New tramways to be part of Corporation tramways.

14. Subject to the provisions of this Order the new tramways and the works connected therewith by this Order authorised to be constructed shall for all purposes of rates tolls and charges and for all other purposes whatsoever be part of the Corporation tramways save and except that the same shall not fall under or be subject to the provisions of the existing lease of the Corporation tramways.

Power to cross road on level.

15. The Corporation may in the construction of Tramroad or Tramway No. 2 carry the same with a single line only whilst the same shall consist of a single line and afterwards should any part of the said tramroad or tramway on either side

of the road next herein-after mentioned be doubled with a double line only across and on the level of the said road (that is to say):— A.D. 1916.

No. on deposited Plans.	Parish.	Description of Road.
14 & 18	Colinton - - -	Road from city of Edinburgh to Hunter's Tryst.

16. The Corporation may increase the carriageway of any street or road in which any of the new tramways are authorised to be laid to such extent as may be necessary to leave a space of nine feet and six inches between the outside of the footpath or waste on each or either side of such street or road and the nearest rail of the tramway by reducing the width of the footpath or waste on each or either side of such street or road. Provided that neither the footway nor waste shall be reduced in width without the consent of the road authority nor as regards the footway to such an extent as to be less than six feet wide.

Corporation may reduce footpath for constructing new tramways.

17. Notwithstanding anything contained in the Tramways Act 1870 the Corporation shall not in carrying out any of the works authorised by this Order or in the exercise of the general powers by this Order conferred themselves alter or interfere with the existing lines or levels of the mains aqueducts conduits or lines of pipes and apparatus connected therewith or any of them belonging to the Edinburgh and District Water Trustees (herein-after called "the water trustees") including consumers' pipes nor injuriously affect or interrupt the supply of water conveyed by the same but all such alterations on or interference with the mains aqueducts conduits or lines of pipes and apparatus connected therewith of the water trustees including consumers' pipes as may be necessary in consequence of the carrying out of any of the said works shall be executed by the water trustees at the expense of the Corporation and the water trustees shall at all times have a right of access to such mains aqueducts conduits or lines of pipes and apparatus connected therewith including consumers' pipes for the renewal repair enlargement alteration and maintenance of the same and for making new connexions and laying additional pipes when and where they shall see fit and any additional cost of such alterations or repairs

For protection of water mains and pipes.

A.D. 1916. — caused by the works of the Corporation in any road or street where any such mains aqueducts conduits or lines of pipes and apparatus connected therewith including consumers' pipes shall have been laid before the execution of the said works shall be borne by the Corporation. And in all cases where works are to be executed by the water trustees to be paid for by the Corporation the water trustees shall use every means in their power to have the works executed as economically as possible but should any dispute arise between the parties as to the necessity for such works or as to the cost thereof the same shall be decided by arbitration in the manner herein-after provided and all payments for work executed by the water trustees shall be made by the Corporation within three months after the cost of the work has been certified by the water trustees' engineer with interest till paid:

Provided always that before proceeding to carry out any of the works authorised by this Order which may affect or interfere with any of the said mains aqueducts conduits or lines of pipes and apparatus connected therewith including consumers' pipes the Corporation shall give at least fourteen days notice of their intention so to do to the clerk of the water trustees and shall submit plans and sections showing the intended operations.

For protec-
tion of gas
mains and
pipes.

18. Notwithstanding anything contained in the Tramways Act 1870 the Corporation shall not in carrying out any of the works authorised by this Order or in the exercise of the general powers by this Order conferred themselves alter or interfere with the existing lines or levels of the mains or lines of pipes and apparatus connected therewith or any of them belonging to the Edinburgh and Leith Corporations Gas Commissioners (herein-after called "the gas commissioners") including consumers' pipes nor injuriously affect or interrupt the supply of gas conveyed by the same but all such alterations on or interference with the mains or pipes and apparatus connected therewith of the gas commissioners including consumers' pipes as may be necessary in consequence of the carrying out of any of the said works shall be executed by the gas commissioners at the expense of the Corporation and the gas commissioners shall at all times have a right of access to such mains and pipes and apparatus connected therewith including consumers' pipes for the renewal repair enlargement alteration and maintenance of the same and for

A.D. 1916.

making new connexions and laying additional pipes when and wherever they shall see fit and any additional cost of such alterations or repairs caused by the works of the Corporation in any road or street where any such mains and pipes and apparatus connected therewith including consumers' pipes shall have been laid before the execution of the said works shall be borne by the Corporation And in all cases where works are to be executed by the gas commissioners to be paid for by the Corporation the gas commissioners shall use every means in their power to have the works executed as economically as possible but should any dispute arise between the parties as to the necessity for such works or as to the cost thereof the same shall be decided by arbitration in the manner herein-after provided and all payments for work executed by the gas commissioners shall be made by the Corporation within three months after the cost of the work has been certified by the engineer of the gas commissioners with interest till paid :

Provided always that before proceeding to carry out any of the works authorised by this Order which may affect or interfere with any of the said mains or pipes and apparatus connected therewith the Corporation shall give at least fourteen days notice of their intention so to do to the clerk to the gas commissioners and shall submit plans and sections showing the intended operations.

19. Notwithstanding anything contained in the Tramways Act 1870 the Corporation shall not in carrying out any of the works authorised by this Order or in the exercise of the general powers by this Order conferred themselves alter or interfere with the existing main and branch sewers belonging to the Water of Leith Purification and Sewerage Commissioners (herein-after called "the Water of Leith Commissioners") or the lines and levels of the same or any apparatus manholes accesses or entrances connected therewith nor injuriously affect or interrupt the flow of sewage and other materials through or by the same but all such alterations on or interference with the main or branch sewers of the Water of Leith Commissioners or manholes or apparatus connected therewith as may be necessary in consequence of the carrying out of any of the said works shall be executed by the Water of Leith Commissioners at the expense of the Corporation and the Water of Leith Commissioners shall

For protec-
tion of Water
of Leith
Purification
and Sewer-
age Com-
missioners.

A.D. 1916. at all times have a right of access to such main or branch sewers or manholes or apparatus connected therewith for the renewal repair enlargement alteration and maintenance of the same and for making new connexions and laying additional pipes when and where they shall see fit and any additional cost of such alterations or repairs caused by the works of the Corporation in any road or street where any such main or branch sewers or manholes or apparatus connected therewith shall have been laid before the execution of the said works shall be borne by the Corporation And in all cases where works are to be executed by the Water of Leith Commissioners to be paid for by the Corporation the Water of Leith Commissioners shall use every means in their power to have the works executed as economically as possible but should any dispute arise between the parties as to the necessity for such works or as to the cost thereof the same shall be decided by arbitration in the manner herein-after provided and all payments for work executed by the Water of Leith Commissioners shall be made by the Corporation within three months after the cost of the work has been certified by the clerk or other official of the Water of Leith Commissioners with interest till paid:

Provided always that before proceeding to carry out any of the works authorised by this Order which may affect or interfere with any of the said main or branch sewers or any apparatus manholes accesses or entrances connected therewith the Corporation shall give at least fourteen days notice of their intention so to do to the clerk to the Water of Leith Commissioners and shall submit plans and sections showing the intended operations.

Arbitration.

20. If any difference shall at any time arise between the Corporation and the water trustees or the gas commissioners or the Water of Leith Commissioners or their respective engineers with respect to any of the matters referred to in the three next preceding sections of this Order or in the Tramways Act 1870 or with respect to the time taken or required for executing any of the works or operations therein mentioned such difference shall be referred to an engineer to be mutually agreed on or failing agreement to an engineer to be appointed by the sheriff on the application of either the Corporation or the water trustees or the gas commissioners or the Water of Leith Commissioners as the case may be.

21. Subject to the provisions of this Order the sections of the Corporation Tramways Acts mentioned in the Second Schedule to this Order shall so far as the same are respectively applicable extend and apply mutatis mutandis to the new tramways.

A.D. 1916.

Application
of sections of
Corporation
Tramways
Acts.

22. The Corporation may for the purpose of working any of the new tramways by mechanical power construct lay down erect maintain renew and repair on in under or over the surface of any street or road (including the footways thereof) footpath bridge or public place in which any of the new tramways will be situate such posts brackets and overhead or other electric conductors wires tubes mains plates electric cables and apparatus and may make and maintain in on or under any such surface such openings and ways as may be necessary or convenient either for the working of the new tramways or for providing access to or forming connexions with any generating station of the Corporation or with any depôt car shed engine machinery or apparatus of the Corporation or for the purpose of any junction with any other tramway and may for those purposes subject to the restrictions and provisions contained in Part II. of the Tramways Act 1870 and of this Order open and break up any such street or road (including the footways thereof) footpath bridge or public place and raise alter remove replace and interfere with any lamp-posts trees letter boxes cables sewers drains water or gas pipes tubes conductors telegraphic telephonic and electric wires posts and apparatus therein or thereunder Provided that the Corporation shall not alter remove or interfere with any post office letter box except with the consent in writing of the Postmaster-General and shall not raise alter remove replace or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and subject to the provisions of the said Telegraph Act 1878 Provided also that nothing in this section shall authorise any interference with any electric lines or works of any undertakers under the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 (Power to undertakers to alter position of pipes and wires) of the former Act apply except subject to and in accordance with the provisions of that section Provided further that no post or other apparatus shall be erected on the carriageway except with the consent of the Board of Trade.

Subsidiary
works.

A.D. 1916.

Tramways
to be kept
on level of
surface of
road.

23. If and whenever after the commencement of this Order any road authority alter the level of any road along or across which any part of the new tramways is laid or authorised to be laid the Corporation may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Repair of
part of road
where tram-
way is laid.

24. The materials with which and the manner in which the Corporation shall maintain and keep in good condition and repair the portion of the road referred to in section 28 of the Tramways Act 1870 shall be such as may be agreed between the road authority and the Corporation or in case of difference between them as may be determined by the Board of Trade on the application of either party.

Shelters or
waiting-
rooms.

25. The Corporation may erect and maintain in any district sheds or shelters or waiting-rooms for the accommodation of passengers and of the servants of the Corporation and the Corporation may with the consent of the local and road authority of such district for such period and on such terms as may be agreed upon use for that purpose portions of the public roads within such district.

As to
removal of
snow &c.

26. If the Corporation at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the tramways the Corporation may at their own cost remove the snow or other matter to the side of the road but so as not to impede or obstruct the ordinary traffic on the road and shall without undue delay cause the same to be taken away from the road and such cost shall be debited to the tramways account of the Corporation.

As to
licensing
carriages &c.

27. Notwithstanding the provisions relating to tramways hackney carriages or stage coaches contained in any Act of Parliament (other than an Act relating to Inland Revenue) or in any byelaw made under any Act of Parliament it shall not be necessary for carriages using the tramways or for the drivers motormen or conductors in charge of or using such carriages to be licensed except in accordance with the byelaws (if any) made by the Corporation under this Order or under the Corporation Tramways Acts.

Saving exist-
ing lease of
tramways

28. Nothing in this Order contained shall prejudice or affect the agreement of lease between the Corporation the Edinburgh

and District Tramways Company Limited and Dick Kerr and Company Limited dated twenty-third twenty-fifth and twenty-sixth July one thousand eight hundred and ninety-eight the memorandum of agreement between the Corporation Dick Kerr and Company Limited and other parties dated sixteenth seventeenth and eighteenth October one thousand eight hundred and ninety-nine the supplementary memorandum of agreement between the Corporation the Edinburgh and District Tramways Company Limited and Dick Kerr and Company Limited dated fifteenth seventeenth and twenty-ninth July one thousand nine hundred and two and the additional memorandum of agreement between the Corporation the Edinburgh and District Tramways Company Limited and Dick Kerr and Company Limited dated sixteenth and twenty-fifth January and first February one thousand nine hundred and six and the minute of agreement between the Corporation the Edinburgh and District Tramways Company Limited and Dick Kerr and Company Limited dated fourteenth June and fifth and fourteenth July one thousand nine hundred and ten or the rights and interests of the respective parties under the said several deeds.

A.D. 1916.
and relative
agreements.

29. If the Commissioners of Works are of opinion that the generation or use of electrical energy under or for the purposes of this Order by the Corporation injuriously affects or is likely to injuriously affect any instrument or apparatus at present or which may hereafter be in or adjacent to the Royal Observatory on Blackford Hill at Edinburgh or the efficient working of such instrument or apparatus the Board of Trade may after such inspection and inquiry as they think proper require that the Corporation shall use such reasonable and proper precautions including insulated returns as the Board of Trade may deem necessary for the prevention of such injurious affection and the Corporation shall forthwith comply with such requisition. For the purpose of this section any person authorised in writing by the Commissioners of Works shall have access at all reasonable times to the works and apparatus of the Corporation who shall give all due facilities for the inspection. Provided always that in the event of any instruments or apparatus hereafter used in the said Observatory which may be of a different character and of materially greater delicacy than those used therein at the passing of this Order the Board of Trade shall consider and may in their discretion determine

For protection of
Blackford
Hill Observatory.

A.D. 1916. — to what extent the powers of this section should be exercised regard being had to the interests of the public as well as to the purposes of the instruments or apparatus as the case may be.

For protection of county council of county of Midlothian.

30. For the protection of the county council of the county of Midlothian (in this section called "the county council") the following provisions shall unless otherwise agreed upon between the county council and the Corporation have effect (that is to say) :—

(1) In this section the expression "the tramways" means such portion or portions of the tramways by this Order authorised as is or are situate on public streets or roads within the jurisdiction of the county council:

(2) (A) The Corporation may by agreement with the owners lessees and occupiers interested purchase or acquire any lands which may be necessary for widening Corstorphine Road on which Tramway No. 8 is intended to be constructed at the following places viz. :—

- i. Between the Convalescent Home and St. John's Terrace;
- ii. At Corstorphine Station Road;
- iii. Between Kirk Road and Glebe Road;
- iv. Opposite the United Free Church;

to such extent as to allow a space of nine feet six inches to intervene between the nearest rail of the tramway and the outside of the footpath where a footpath at present exists and where there is no footpath a clear space of nine feet six inches from the nearest rail to the edge of the metal bed of the roadway;

(B) In the event of the Corporation failing to agree with the owners lessees or occupiers interested for the purchase of any lands which may be necessary for such widenings the Corporation shall in the next Provisional Order to be promoted by them make application for and use their best endeavours to obtain all such powers as may be necessary for effecting the said widenings:

A.D. 1916.

- (3) The Corporation shall also before commencing to construct Tramway No. 8 opposite Clermiston Road in the village of Corstorphine lower the level of the carriageway of the existing road there in so far as may be reasonably practicable to a depth not exceeding one foot six inches for a distance of two hundred yards or thereby to the satisfaction of the county council and the Corporation shall notwithstanding anything contained in this Order or shown on the deposited plans construct Tramway No. 8 to terminate at the wide portion of the roadway opposite the end of Templeland Road Corstorphine:
- (4) The Corporation shall pave the tramways with granite setts laid on concrete between the rails and to an extent not exceeding one foot six inches on either side thereof to the satisfaction of the county council Provided that with the consent of the county council the Corporation may to the same extent pave such tramways with wood where such tramways pass in close proximity to churches hospitals or dwelling-houses and all such paving shall thereafter be maintained by the Corporation to the satisfaction of the county council:
- (5) The Corporation in breaking up the surface of roads shall not without the consent of the county council have more than two hundred lineal yards open or broken up at one time in any road less than one quarter of a mile in length and in the roads of greater length shall not at one time have open or broken up any continuous portion exceeding two hundred lineal yards in length with intervals of not less than two hundred lineal yards of clear space between any portions opened or broken up and the Corporation shall open break up or interfere with the surface of the roads and obstruct the traffic thereon as little as may be:
- (6) In the course of the construction and maintenance of the tramways the Corporation shall at all times leave a sufficient passage for vehicular and foot traffic throughout the whole length of any road upon which operations in connexion with such construction or maintenance are in progress:

A.D. 1916.

- (7) The Corporation shall repay to the county council any additional expenditure which they may incur in superintending the works authorised by this Order and shall restore and make good to the satisfaction of the county council and to their standard specification the surface of the roads broken up or damaged by them during the construction of the tramways or damaged in respect of the traffic on such roads being restricted to one side thereof during the construction of the tramways :
- (8) The exercise by the Corporation of the powers conferred by the section of this Order the marginal note of which is "Power to make additional cross-overs and to double tramway lines" shall so far as regards works to be situate in public roads within the jurisdiction of the county council be subject to the consent of the county council which consent shall not be unreasonably withheld :
- (9) Notwithstanding anything contained in section 30 of the Tramways Act 1870 or in this Order the Corporation shall not in making forming laying down maintaining repairing or renewing the tramways or any part thereof themselves alter or interfere with the existing lines or levels of the mains aqueducts conduits or lines of pipes and apparatus connected therewith or any of them belonging to the county council including consumers pipes or injuriously affect or interrupt the supply of water conveyed by the same but any alterations in or interference with the mains aqueducts conduits or lines of pipes and apparatus connected therewith of the county council including consumers pipes which may at any time be necessary in consequence of the construction of the tramways shall on the requisition of the Corporation be executed by the county council at the expense of the Corporation and the county council shall at all times have a right of access to such mains aqueducts conduits or lines of pipes and apparatus connected therewith including consumers pipes for the renewal repair enlargement alteration and maintenance of the same and for making new

A.D. 1916.

connections and laying additional pipes when and wherever they shall see fit and any additional cost of such alteration or repairs caused by the works of the Corporation of any such mains aqueducts conduits or lines of pipes and apparatus connected therewith including consumers pipes laid before the construction of the tramways shall be borne by the Corporation and in all cases where works are to be executed by the county council and to be paid for by the Corporation the county council shall use every means in their power to have the works executed as economically as possible and with all reasonable despatch :

- (10) When the Corporation open or break up any street roadway or footpath for the purpose of erecting any pole or doing any other work in connection with the tramways the Corporation shall within three days after the same has been opened or broken up reinstate the same in as good condition as that in which it was before it was opened or broken up and in case the Corporation make any default in so doing the county council may reinstate the same as aforesaid at the expense of the Corporation :
- (11) Whenever the Corporation desire to erect any pole or do any other work in connexion with the tramways which involves any alteration or removal of any sewer or drain or machinery or appliance connected therewith vested in or belonging to the county council the county council may at their option (but without prejudice to any protection afforded to them by the Tramways Act 1870) make such alteration or removal as the case may be and do all works incidental thereto and all the reasonable and necessary expenses which the county council shall thereby incur shall be defrayed or repaid to them by the Corporation :
- (12) Sections 30 32 and 33 of the Tramways Act 1870 shall in relation to the tramways apply to the county council with reference to the water and gas mains pipes and apparatus belonging to the county council

A.D. 1916.
—

in like manner as the same apply to a company or person being the owner of water or gas pipes or mains :

- (13) In the case of any byelaws made by the Corporation under the powers conferred on them by section 27 of the Edinburgh Improvement and Tramways Act 1896 such byelaws shall not have effect in regard to the portions of the tramways situated in the county of Midlothian except in so far as they may be approved by the county council :
- (14) Notwithstanding the provisions of section 30 of the Edinburgh Improvement and Tramways Act 1896 incorporated with this Order neither the Corporation nor the magistrates of the city of Edinburgh shall have any powers as regards the regulation of the passage of any traffic along or across any road in the county of Midlothian :
- (15) If any question arise between the Corporation and the county council under this section the same shall be referred to an arbiter to be agreed upon by the Corporation and the county council or failing agreement to be appointed by the Board of Trade on the application of either party :
- (16) All money payable by the Corporation to the county council under the provisions of this section shall be payable on demand in writing and in default thereof may be recovered by the county council from the Corporation by action in any competent court.

PART III.

NEW WORKS.

Street
widening
and other
works.

31. Subject to the provisions of this Order and to the powers of deviation herein-after mentioned the Corporation may in the lines and situation and upon the lands in that behalf delineated on the deposited plans and described in the deposited books of reference and according to the levels shown on the deposited sections make construct maintain and use the works herein-after mentioned or some of them or some part or parts

thereof together with all necessary and proper works and conveniences connected therewith or incidental thereto respectively (that is to say):—

A.D. 1916.
—

Work No. 7 A sea wall promenade and contingent works (Work No. 7) wholly in the city and city parish of Edinburgh along the foreshore ex adverso of the city and royal burgh commencing at a point five yards or thereabouts west from the line of division wall of the buildings Nos. 27 and 28 Esplanade Terrace and terminating at a point on the foreshore at or nearly opposite to the east wall or gable of the building No. 30 Seaview Terrace and at a distance of forty yards or thereabouts measured in a straight line northwards from the kerb of the footpath upon the north side of Musselburgh Road:

Work No. 8 An improvement on or over the foreshore at Joppa (Work No. 8) being a promenade or terrace wholly in the city and city parish of Edinburgh along the foreshore ex adverso of the city and royal burgh commencing at the point of termination of Work No. 7 herein-before described and terminating at a point fourteen yards or thereabouts measured in a straight line eastwards from the north-east corner of the north boundary wall of the garden of the house known as "Rockville":

Work No. 9 A widening improvement and reconstruction wholly in the city and city parish of Edinburgh (Work No. 9) of the existing street called Gibb's Entry the widening being on the north side thereof commencing in the centre of the roadway of the street known as Nicolson Street at a point twenty-nine yards or thereabouts measured in a northerly direction from the north wall of the "pend" or passage leading into Haddon's Court and terminating in the centre of Simon Square at a point ten yards or thereabouts measured in an easterly direction from the north-east corner of Gibb's Entry aforesaid:

Work No. 10 A widening improvement and reconstruction wholly in the city and city parish of Edinburgh (Work No. 10) of part of the existing highway called Cowgate the widening being along the north side thereof commencing at a point in the said highway at the division of the buildings Nos. 224 and 226 Cowgate and in or

A.D. 1916.
—

along the front building line of the said building No. 224 Cowgate and terminating in Blackfriars Street at a point six yards or thereabouts measured in a northerly direction from the south-west corner of the said street :

Work No. 11 A widening alteration and improvement wholly in the city and city parish of Edinburgh (Work No. 11) of part of the street of Fountainbridge the widening being on the south side thereof commencing at the west end of the Old Slaughter House Gateway and masonry thereof (now the north-west boundary of the Edinburgh Tollcross School site) at a point ninety-four yards or thereabouts measured in a westerly direction from the centre line of Ponton Street and terminating at a point fifty-three yards or thereabouts measured from the same line and in the same direction :

Work No. 12 A raising and regrading wholly within the parish of Colinton and county of Midlothian (Work No. 12) of the footpath leading from or near Oxgangs to Greenbank Crescent commencing at a point on the said footpath one hundred yards or thereabouts measured along the line of said footpath and in a south-westerly direction from the Braid Burn and terminating at the footbridge over the Braid Burn one hundred and forty-two yards or thereabouts measured in a straight line northwards from the north-west corner of building described as "Comiston Cistern" :

Work No. 13 A lowering alteration and bridgeway wholly within the parish of Colinton and county of Midlothian (Work No. 13) of and over the footpath leading from Comiston to Greenback Crescent commencing at a point in the said footpath four yards or thereabouts north from the north-east corner of Comiston Cistern and terminating at the footbridge forming the termination of Work No. 12 herein-before described.

Power to
deviate new
works.

32. In the execution of the said works or any of them described in this part of this Order the Corporation may deviate laterally to any extent within the limits of deviation shown on the deposited plans applicable thereto and may deviate from the levels shown on the deposited sections to any extent not exceeding two feet :

Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade. A.D. 1916.

33. The Corporation shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Order the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

Works below high-water mark not to be commenced without consent of Board of Trade.

34. In respect the aforesaid Work No. 7 is necessary to protect the ground lying between the same and the public highway from inroads of the sea and it is not known who is the owner of such ground the Corporation are hereby authorised to enter upon and possess the said ground and in the event of an owner or owners ever claiming and establishing a title to the said ground and to the ground upon which the said Work No. 7 is to be carried out preferable to the title of the Corporation such owner or owners shall not be entitled to enter upon or use such ground or any part thereof except upon condition of previously making repayment to the Corporation of the cost of executing the said work with interest thereon at the rate of five per centum per annum and such owner or owners shall have no claim against the Corporation in respect of the carrying out of the said work. Provided always that before the Corporation shall proceed to execute the said work they shall advertise their intention so to do once in each of three successive weeks in at least two of the newspapers published in the city.

Cost incurred for works at Joppa.

A.D. 1916.

Period for
completion
of works.

35. If the works described in this Part of this Order and shown on the deposited plans are not completed within seven years from the passing of the Act confirming this Order then on the expiration of that period the powers hereby granted for the execution of the same shall cease except as to so much thereof as is then completed.

Incorporation of
sections of
Acts of 1893
and 1913.

36. Sections 20 (Magistrates and council may take down buildings and lay out lands and sell or let those not required) 21 (Power to make subsidiary works &c.) 22 (Alterations of sewers and gas and water pipes) 23 (Alterations consequent on changing levels of streets to be made at expense of magistrates and council) 24 (Carriage and foot ways vaults cellars &c. and ownership thereof) and 26 (Magistrates and Council not to be bound to execute all works) of the Act of 1893 and section 30 (Corporation empowered or may be required to underpin or otherwise strengthen houses near works) of the Act of 1913 shall so far as applicable apply mutatis mutandis to the works authorised to be executed by this Order and to the lands authorised to be acquired therefor and for the other purposes of this Order.

Vesting of
street works
in road
authority.

37. The street widenings so far as the same affect any public road when the same shall respectively have been completed to the reasonable satisfaction of the road authority shall together with the surface rights in all lands laid into and appropriated for such widenings and the subsidiary works connected therewith vest in such road authority and shall for all purposes form part of the roads to which they are respectively added.

PART IV.

ACQUISITION OF LANDS.

Lands for
works &c.

38. Subject to the provisions of this Order the Corporation may enter upon purchase take hold appropriate and use the lands houses and property respectively shown on the deposited plans and described in the deposited books of reference or such part or parts thereof as may be required for or in connexion with the Tramroad or Tramway No. 2 and the street widenings and works respectively by this Order authorised.

For protection of
parish
council of

39. Nothing in this Order contained shall authorise the Corporation to acquire any right of property in or to the conduit or pipe-way and pipe belonging to the parish council of the

city parish of Edinburgh in and through the lands distinguished, on the deposited plans and described in the deposited book of reference by the numbers 20 and 22 and the Corporation shall in constructing maintaining altering or renewing the said Tram-road or Tramway No. 2 take such measures as may be necessary to secure that the continuity or the pressure of the supply of water hitherto obtained or obtainable by the parish council by means of the said conduit or pipe-way and pipe shall not be stopped or interrupted or in any way interfered with and any works on or affecting the said conduit or pipe-way and pipe which may be necessary for this purpose shall be carried out by the Corporation at their expense and failing agreement to the satisfaction of an engineer to be appointed by the sheriff on the application of either of the parties Provided that the said parish council shall have the right of access at all times to the said conduit or pipe-way and pipe for the purpose of inspection or making any alterations or repairs thereon Provided further that Part II. of the Tramways Act 1870 shall not apply to the said conduit or pipe-way and pipe belonging to the said parish council.

A.D. 1916.
city parish
of Edin-
burgh.

40. Subject to the provisions of this Order the Corporation may for the purposes of street and other improvements compulsorily or by agreement enter upon purchase take hold appropriate and use the lands houses and property respectively herein-after mentioned and shown on the deposited plans and marked thereon area "A" and area "C" respectively and described in the deposited books of reference or any part or parts of the same The said lands houses and other property are the following:—

Purchase of
lands for
street and
other im-
provements.

Area "A" The lands houses shops stores buildings and other property within the city and city parish of Edinburgh situate within the area marked "A" delineated on the deposited plans bounded by a line along a part of the north side of the Cowgate and there commencing at the south-east boundary of the property known as Heron's Court 134 Cowgate extending westwards along the building frontage line for a distance of twenty-six yards or thereabouts thence northwards for a distance of eighteen yards or thereabouts thence eastwards for a distance of twenty-three yards or thereabouts thence southwards along an irregular line to the point of commencement:

A.D. 1916. .
—

Area "C" The lands houses shops stores warehouses workshops buildings and other property within the city and city parish of Edinburgh situate within the area marked "C" delineated on the deposited plans bounded by a line along a part of the east side of the street known as Nicolson Street and there commencing at a point twelve yards or thereabouts southward from the north side of the pend or passage leading into Haddon's Court and extending northwards for a distance of sixty-three yards or thereabouts thence north-eastwards to the centre of the street known as Davie Street thence southwards along the centre of the streets known as Davie Street and Simon Square and for a distance of ninety-seven yards or thereabouts thence westwards for a distance of twenty-two yards or thereabouts thence northwards for a distance of twenty yards or thereabouts thence westwards for a distance of forty yards or thereabouts thence southwards for a distance of twelve yards or thereabouts thence westwards to the point of commencement:

Provided always that nothing in this section contained shall confer upon the Corporation power to purchase take hold appropriate use or interfere with the servitudes vested in the Commissioners of Works on behalf of the Crown of passage way or access for cart and foot traffic from the Cowgate to the back entrances of the Edinburgh Law Courts and to the Office of Works' workshops through Heron's Court aforesaid or of wayleaves for water sewage gas or other pipes through or under the said Court or Old Mealmarket Close Cowgate.

Purchase
of lands for
tramways
purposes.

41. Subject to the provisions of this Order the Corporation may for the purposes of the tramway undertaking of the Corporation enter upon purchase take hold appropriate and use the lands after mentioned and shown on the deposited plans and marked area "D" and described in the deposited books of reference or any part or parts of the same:—

The said lands are the following:—

Area "D" The lands wholly within the parish of Corstorphine and county of Midlothian situate within the area marked "D" delineated on the deposited plans

and bounded by a line commencing at a point on the south side of Corstophine Road twenty-eight yards or thereabouts east from the line of east boundary of Templeland Road thence eastwards along Corstophine Road for a distance of twenty yards or thereabouts thence southwards for a distance of seventy yards or thereabouts thence eastwards for a distance of twenty-seven yards or thereabouts thence southwards for a distance of seventy-three yards or thereabouts thence westwards for a distance of forty-seven yards or thereabouts thence in a northerly direction to the point of commencement.

A.D. 1916.

42. If there be any omission mis-statement or erroneous description of any lands which may be required or taken for the street widenings and other works and the new tramways hereinbefore described respectively or any of them or for the other purposes of this Order or of the owners lessees or occupiers of any such lands shown on the deposited plans or specified in the deposited books of reference the Corporation after giving ten days' notice to the owners lessces and occupiers of the lands in question may apply to the sheriff for the correction thereof and if it appear to the sheriff that such omission mis-statement or erroneous description arose from accident or mistake he shall certify the same accordingly and shall in such certificate state the particulars of the omission and in what respect any such matter is mis-stated or erroneously described and the decision of the sheriff in such matter shall be final.

Omission or mis-statement in plans or books of reference may be corrected.

43. The certificate of the sheriff shall be deposited in the office at Edinburgh of the principal sheriff clerk of the county of Midlothian and a duplicate thereof shall be deposited at the office of the principal sheriff clerk of the county of the city of Edinburgh and such certificate and duplicate shall be kept by such sheriff clerks respectively along with the other documents to which they relate and thereupon the deposited plans and books of reference shall be deemed to be corrected in accordance with the certificate and the Corporation may enter on purchase take hold and use for the purposes of this Order any lands in accordance with such certificate as if such omission mis-statement or erroneous description had not been made.

Certificates to be deposited.

A.D. 1916.

Limiting
period for
compulsory
purchase of
lands.

44. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order.

Stoppage of
roads during
execution of
works.

45. Subject to the provisions of this Order the Corporation may during the execution of the new tramways and the street widenings and the other works by this Order authorised stop up temporarily the carriageway or footway of any street road or bridge as may be necessary and for that purpose may put up bars posts and other erections. Provided that the Corporation shall before stopping up any footway under this section provide a temporary substitute therefor with access therefrom to any houses.

Power to
grant servi-
tudes &c.
by agree-
ment.

46. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order or any of them in over or affecting any such lands and the provisions of the said Acts with respect to lands and ground annuals or feu duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

47. And whereas in the construction of the tramways and works by this Order authorised or otherwise in the exercise by the Corporation of the powers of this Order it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Order and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

A.D. 1916.

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

(3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed:

(4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

(5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be

A.D. 1916.

severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :

- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation (Scotland) Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Arbitration.

48. Where power is conferred on the Corporation under the provisions of this Order to take and acquire lands compulsorily the Corporation or any owner lessee or occupier upon whom a notice to treat under the provisions of this Order has

been served may failing agreement as to price apply to the Secretary for Scotland to appoint a single arbiter to fix and determine the amount of compensation to be paid on such acquisition and on such appointment being made such compensation shall be determined by such arbiter and it shall not be competent to have the same determined by arbiters oversman sheriff or jury as required by the Lands Clauses Acts The remuneration of such arbiter shall failing agreement as to the amount thereof be fixed by the Secretary for Scotland and shall be paid by the Corporation An arbiter appointed under this section shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with respect to an arbitration shall apply accordingly.

A.D. 1916.

PART V.

ROYAL VICTORIA HOSPITAL.

49. The agreement as set forth in the Third Schedule to this Order made between the Honourable Charles John Guthrie King's Counsel one of the senators of the College of Justice Edinburgh and Robert Russell Simpson Charles Cook and James Mylne all writers to the signet there the trustees of the Royal Victoria Hospital for Consumption Edinburgh (herein-after called "the trustees") and with the consent of the committee of management of the said Royal Victoria Hospital (herein-after called "the committee of management") of the first part and the lord provost magistrates and council of the city of Edinburgh of the second part is subject to the provisions of this Part of this Order hereby confirmed and made binding on the parties thereto and shall have effect according to the true intent and meaning thereof and notwithstanding anything contained in the constitution and rules of the said hospital or in any deed or declaration of trust applicable thereto or in the conditions under which any contributions forming the funds of the hospital or any part thereof were given or subscribed or are held the trustees and committee of management and any persons charged with or having the management and administration of the Royal Victoria Hospital or holding any right title or interest therein are hereby authorised and empowered to transfer and dispoise the Royal Victoria Hospital to the Corporation on the terms and conditions specified in the said scheduled agreement and the Corporation are hereby authorised to take over the said

Confirma-
tion of
agreement
with
trustees of
Royal
Victoria
Hospital.

A.D. 1916. Royal Victoria Hospital and to maintain the same under the Public Health (Scotland) Acts.

Royal
Victoria
Hospital
Trust to
continue
for certain
purposes.

50. Notwithstanding the transference of the Royal Victoria Hospital to the Corporation and subject to the provisions of this Part of this Order the trustees and committee of management may under the style or title of the Royal Victoria Hospital Tuberculosis Trust continue to act under the existing constitution and rules of the Royal Victoria Hospital or as the said constitution and rules have been or may be altered to meet the requirements of the said trust in furtherance of the objects of the trust in so far as these are not connected with the Royal Victoria Hospital at Craigleith Edinburgh the dispensary at Spittal Street Edinburgh and the farm colony in the parish of Lasswade or are outside the purposes powers and duties of the Corporation under the Public Health (Scotland) Acts and of the National Insurance Act 1911 in connection with the care and treatment of persons suffering from tuberculosis.

Application
of funds of
Royal
Victoria
Hospital
Trust.

51. Subject to the provisions of the said scheduled agreement the trustees and committee of management may apply the trust funds towards the objects contemplated by the constitution and rules of the trust including the establishment equipment endowment and maintenance of a chair or lectureship in the University of Edinburgh for teaching in connexion with tuberculosis and similar or other diseases and with this view the trustees and committee of management may enter into and carry out agreements with the University of Edinburgh.

Discharge
to Royal
Victoria
Hospital
Trustees.

52. The trustees and the committee of management on delivering to the Corporation a valid disposition of the Royal Victoria Hospital in accordance with the provisions of this Order shall be and are hereby discharged of and from all their actings and intromissions as such trustees and of their management and administration of the Royal Victoria Hospital prior to the same being transferred to the Corporation and of their trust in so far as the said trust does not continue vested in them as aforesaid.

PART VI.

ASSESSMENTS BORROWING POWERS AND FINANCE.

Application
of sections of
Corporation
Tramways

53. The Corporation Tramways Act 1893 to the extent in this section mentioned (that is to say) Section 21 (Local rate) section 22 (Power to borrow for purposes of Tramways Act 1870

and this Act) section 23 (Application of money borrowed) is hereby incorporated with and shall form part of this Order and shall subject to the provisions of the Act of 1893 the Corporation Tramways Act 1896 the Extension Act 1896 the Act of 1897 the Act of 1899 the Act of 1900 the Order of 1901 the Order of 1905 the Act of 1906 the Order of 1908 the Order of 1910 the Act of 1913 and this Order apply mutatis mutandis to the new tramways and to any lands acquired or to be acquired under and for the tramway purposes of this Order in the same way and to the same effect and shall confer the same powers and impose the same obligations on the Corporation of assessing within the city and of borrowing and for repayment of money borrowed as if such sections as amended and extended by the said Acts and Orders were severally herein set out at length Provided always that the execution of the works Nos. 12 and 13 authorised by this Order shall for the purposes of this section be deemed to be a tramway purpose.

A.D. 1916.

Act 1893 as
to assessing
borrowing
&c. for
tramway
purposes.

54. The Corporation are hereby authorised to impose assess and levy within the city and recover apply and use for the execution of the works authorised by this Order (other than the new tramways and the Works Nos. 12 and 13 authorised by this Order) and for carrying out the other powers objects and purposes of this Order or any of them and for the acquisition of lands and heritages and servitudes or other property which may be required in connexion therewith (other than for tramway purposes) the burgh assessments under their control applicable to general improvements under the third head of estimate as authorised by the Act of 1879 as amended and extended by the several Edinburgh Municipal and Police Acts thereafter passed and so far as in force for the time within the city or so much of the said assessments as may be necessary for such purposes in the way and manner and by the same means as are provided in the Act of 1879 as so amended and extended.

Power to
apply burgh
assessment.

55. Subject to the provisions of this Order the Corporation are hereby authorised to borrow money for executing the works authorised by this Order (other than the new tramways and the Works Nos. 12 and 13 authorised by this Order) and for carrying out the powers objects and purposes of this Order or any of them and for the acquisition of lands and heritages servitudes and other property which may be required in connexion therewith (other than for tramway purposes) on the security of the burgh assessments before mentioned under their

Application
of provisions
of Act of
1879 as to
borrowing
money.

A.D. 1916. — control to be levied and applied and used as in this Order provided and they shall provide a sinking fund for the repayment of the sums so borrowed and sections 81 (Power to borrow money for the purposes of this Act) 82 (Power to borrow on cash credit) 83 (Mortgages to be recorded and assignments to be registered) 84 (Sinking fund) 86 (Borrowing power for current expenses) 87 (Arrears may be enforced by appointment of judicial factor) 88 (Powers and duties of judicial factor) 89 (Magistrates and council not to be personally liable) of the Act of 1879 as to borrowing money are as amended and extended by the several Edinburgh Municipal and Police Acts thereafter passed and by this Order and so far as in force for the time within the city incorporated herewith and the powers and provisions therein contained as so amended and extended shall be held to apply to the purposes of this Order and to the money borrowed under the authority of this Order as if such sections as so amended and extended were re-enacted in this Order.

Restriction
on exercise
of borrowing
powers.

56. Notwithstanding anything in this Order contained the Corporation shall not under the powers of this Order borrow any money (other than money required for the payment of the costs charges and expenses of or in connection with the obtaining and confirming of this Order) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained and the periods limited by this Order for the compulsory purchase of lands and the completion of works shall be calculated from the date of the consent of the Treasury or the expiration of the said period of twelve months whichever event shall first happen.

PART VII.

MISCELLANEOUS.

Closing
streets &c.

57.—(1) The Corporation may by resolution passed or order made at a meeting of the Corporation after notice of the intention to exercise the powers of this section has been given in the notice convening the meeting of the Corporation and by advertisement published once in each of two successive weeks with an interval between such publications of not less than six clear days in some newspaper or newspapers published and circulating in the city shut up discontinue and close any public street or court or right of way or any portion of a public street or court or right of way which has from change of circumstances or

otherwise become useless to the public or dangerous to foot passengers or may by resolution or order as aforesaid consent to the shutting up and closing of the same on such terms and conditions as may be arranged with the owner of the solum thereof. A.D. 1916.

(2) Any resolution or order of the Corporation under this section shall be published once in each of two successive weeks with an interval between such publications of not less than six clear days in some newspaper or newspapers published and circulating in the city and by a printed copy thereof being affixed in some conspicuous place at both ends of such street or court and a notice narrating such resolution or order and containing a copy of this section shall be served on every owner lessee and occupier of lands and heritages fronting or abutting on or entering from the street court or right of way referred to in the resolution or order.

(3) Within one month after the first publication of such resolution or order and the service of such notice the Corporation shall report the resolution or order to the sheriff and any person aggrieved by the resolution or order may within the said period of one month appeal to the sheriff against such resolution or order provided that he gives written notice of such appeal and the grounds thereof to the town clerk of Edinburgh.

(4) On such resolution or order being reported to him the sheriff shall take the same into consideration along with any appeal which may have been made against the same under the provisions of this section and shall hear parties and may require them to submit evidence and the sheriff may either confirm the resolution or order or if he considers that in the circumstances the resolution or order should not have been made declare the same to be void and of no effect and his decision shall be final as regards the said resolution or order and he may award expenses such expenses to be recoverable as a civil debt.

(5) In the event of the sheriff confirming the resolution or order he shall in his interlocutor declare the solum of the street court or right of way or portion thereof referred to in the resolution or order to be vested in the person or persons whose lands immediately adjoin thereto in the event of such person or persons appearing before the sheriff and claiming the same before the date of such interlocutor or failing such claim the sheriff

A.D. 1916. shall declare the said solum to be vested in the Corporation and the solum so vested shall thereupon be deemed to be freed and discharged from the public use thereof.

(6) In the event of the sheriff declaring the solum to be vested in the Corporation the Corporation may self-convey or otherwise dispose of the same for such consideration as they may consider reasonable or proper and in the event of the sheriff declaring the solum to be vested in the person or persons whose lands immediately adjoin thereto the Corporation shall be entitled within one month from the sheriff's interlocutor to appropriate and remove the causeway setts road metal or paving material and kerbs and water channels thereon.

Power to
exchange
parts of
streets for
other land.

58. The Corporation may agree with the owner of any land in any street to give up or cede land for the purpose of widening or otherwise improving such street in exchange for any part of such street which shall front other land belonging to such owner and which shall in the opinion of the Corporation be no longer required for public use or for approach to any property adjoining the same and for such other consideration (if any) as may be agreed and all public rights over any portion of any street so exchanged shall be extinguished.

Lands &c.
acquired for
streets to
vest in Cor-
poration.

59. Any land or property ceded to the Corporation or purchased or acquired by the Corporation and laid into or added to any street shall after such laying into or adding to for ever form part of such street and be vested in and maintained and kept in repair by the Corporation under the same conditions as those under which such street is for the time being by law maintained and kept in repair:

Provided that at least one month before adding any land or property to any street under the provisions of this section the Corporation shall give public intimation of their intention so to do by advertisement in some newspaper or newspapers published and circulating in the city and also by notice to every owner lessee or occupier of such land or property or other person having a heritable right or interest therein.

Lopping of
overhanging
trees hedges
and shrubs.

60. Where any tree hedge or shrub overhangs any public street or footpath in the city so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may cut and lop the tree hedge or shrub so as to

prevent such obstruction or interference doing no unnecessary damage and making compensation to any persons who may sustain damage by the exercise of the powers conferred by this section : A.D. 1916.

Provided that except in cases of emergency the Corporation shall give written notice to the owners or reputed owners or their known agents or factors eight days before exercising the said powers.

61. If any member of the Corporation appointed as a representative by the Corporation upon the Edinburgh and District Water Trust or the Edinburgh and Leith Corporations Gas Commission or the Water of Leith Purification and Sewerage Commission ceases to be a member of the Corporation he shall thereupon be deemed to have resigned office as a member of such trust or commission and the vacancy thus arising shall be filled up in the same way and manner as a vacancy arising through the resignation of a member of such trust or commission is filled up. Provided that this section shall not be applicable to any member of the Corporation who retires from the Corporation under statutory rotation and is re-elected at the annual municipal election : Provision as to representatives of Corporation on trusts &c.

Provided also that nothing in this section shall prejudice or affect the right of the Corporation to appoint if they think fit as a representative upon any such trust or commission a person who is not a member of the Corporation.

62. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land buildings heritages servitudes subjects or rights of whatsoever description belonging to His Majesty in right of His Crown or otherwise and under the management of the Commissioners of Woods or of the Board of Trade or of the Commissioners of Works respectively without the consent in writing of the Commissioners of Woods or the Board of Trade or the Commissioners of Works as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). Protection of Crown rights.

A.D. 1916.

As to Crown
minerals.

63. Notwithstanding the provisions contained in the section of this Order of which the marginal note is "Protection of Crown rights" or in any public statute His Majesty and His lessees for their respective interests may work the minerals belonging to the Crown under or adjacent to the lands and works of the Corporation authorised to be taken or constructed by this Order but in the event of any such right being at any time intended to be exercised the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 relating to notice and compensation shall apply when the workings reach a point the distance of which from the nearest of such lands would not if measured horizontally exceed one-half the depth of such workings below the surface level of such lands.

Costs of
Order.

64. All costs charges and expenses attending the preparation obtaining and passing of this Order and incidental thereto shall be paid out of the common good or burgh assessments of the city or any money to be borrowed under this Order And if any such costs are paid out of borrowed money the amount thereof shall be repaid within the period of five years from the commencement of this Order.

SCHEDULES referred to in the foregoing Order. A.D. 1916.

THE FIRST SCHEDULE.

PROPERTIES OF WHICH PORTIONS ONLY MAY BE TAKEN WITHOUT
TAKING THE WHOLE.

Parishes.	Numbers on deposited Plans.
City Parish of Edinburgh -	111 113 113 113 116 117 118 118 119 119 121 122 123 124 125 128 134 134 135 165 166 167 167 168 168 170 171 172 173 173 174 175.175 176 177 178 179 180 181.
Parish of Corstorphine -	61 62 63 185 186 187 188.

THE SECOND SCHEDULE.

SECTIONS OF THE CORPORATION TRAMWAYS ACTS WHICH ARE
APPLIED TO THE NEW TRAMWAYS AUTHORISED BY THIS ORDER.

Date of Act or Order and Marginal Note of Section.	Number of Section.
The Corporation Tramways Act 1896.	
Further provisions as to construction of tramways - - -	14
Penalty for not maintaining rails and roads - - -	16
Sanitary authority to have access to sewers - - -	17
Level of rails - - - - -	20
Temporary tramways - - - - -	22
Application of road materials excavated in construction of tramways	23
Power to use lands for tramway purposes - - - - -	25
Power to use animal or mechanical power - - - - -	26
Byelaws - - - - -	27
Penalties for offences against byelaws - - - - -	28
Byelaws to remain in force till altered - - - - -	29
Saving for Corporation and magistrates' authorities - - -	30
Power to form junctions - - - - -	31
As to notices delivered under Tramways Act 1870 &c. - - -	32
Tramways on streets not yet formed - - - - -	33
Tolls - - - - -	35
Fares on Sunday or public holidays not to be raised - - -	36
Approval of Board of Trade of mechanical power system - -	38
The Act of 1897.	
Power to Corporation to work tramways - - - - -	22
Power to lease tramways - - - - -	23

[Ch. ii.] *Edinburgh Corporation Order* [6 & 7 GEO. 5.]
Confirmation Act, 1916.

A.D. 1916.

Date of Act or Order and Marginal Note of Section.										Number of Section.
The Order of 1905.										
Amendment of existing speed limit on tramways										4
Byelaws of local authority										5
The Act of 1906.										
Byelaws										11
Gauge of tramways										12
Corporation may lop trees overhanging public highway										14
Rails of tramways										22
Special provisions as to use of electrical power										23
For protection of Post Office telegraph lines										24
Alteration of telegraph lines of Postmaster-General										25
Apparatus used for mechanical power to be deemed part of tramways										26
Attachment of brackets &c. to buildings &c.										27
Provisions as to motive power										28
Penalty for malicious damage										29
Power to acquire patent rights										30
Provision as to general Tramway Acts										33
The Order of 1910.										
Use of tramway posts by Postmaster-General										12

THE THIRD SCHEDULE.

MINUTE OF AGREEMENT between the Honourable CHARLES JOHN GUTHRIE K.C. one of the senators of the College of Justice Edinburgh and ROBERT RUSSELL SIMPSON CHARLES COOK and JAMES MYLNE all writers to the signet there trustees for behoof of the Royal Victoria Hospital for Consumption Edinburgh acting under extract registered deed of trust executed by them dated 26th 27th and 30th June and 7th August and registered in the Books of Council and Session 8th August all in the year 1906 at the request and with the consent of the Committee of Management of the said hospital according to the constitution and rules thereof (herein-after called "the First Parties") of the first part and the LORD PROVOST MAGISTRATES AND COUNCIL OF THE CITY OF EDINBURGH (herein-after called "the Second Parties") of the second part.

WHEREAS the First Parties as trustees and committee of management foresaid respectively hold and administer the lands and properties after-mentioned for the purposes of and in accordance with the provisions set forth in the said deed of trust and the constitution and rules of the said Royal Victoria Hospital and the committee inter alia are

carrying on the subjects at Craighleith after mentioned as a sanatorium for the treatment of early cases of tuberculosis and the subjects in Spittal Street after mentioned as a tuberculosis dispensary and the subjects in the parish of Lasswade after mentioned as a farm colony for convalescent tuberculous patients from the said hospital all three institutions forming part of a co-ordinated system for the prevention and treatment of tuberculosis which was commenced in 1887 and has since continued under the care advice and supervision of Sir Robert William Philip M.D. Edinburgh and an adequate staff which several institutions have been acquired and equipped at large outlay amounting to £62,731 6s. 9d. up to 15th May 1913:

A.D. 1916.

And whereas the Second Parties are the local authority for the city of Edinburgh under the Public Health Acts and as such have certain duties in the administration of the said Acts and under the National Insurance Act 1911 in connection with the care and treatment of patients suffering or supposed to be suffering from tuberculosis and that in the interests of the patients themselves and also of the community:

And whereas the Second Parties are carrying on and intend to develop as may be required a scheme for the detection treatment and care of cases of tuberculosis and cognate diseases and for the prevention and protection of the community from the spread of such diseases and in connexion therewith they have made certain arrangements in the infectious diseases hospital belonging to them at Colinton Mains and have entered into an agreement with the First Parties for the services of the said dispensary and also an agreement with the burgh of Edinburgh insurance committee and the said Sir Robert William Philip in connexion with the working of the said scheme:

And whereas it seems desirable in view of the comprehensive scheme to be undertaken by the said local authority to effect a complete amalgamation of the institutions and agencies at present engaged in the prevention and treatment of tuberculosis within the city and after due consideration the parties hereto are of opinion that a combination of these agencies would be for the benefit of the community and the interests represented by all the parties:

Therefore the said parties of the first and second part have agreed and hereby agree as follows videlicet:—

First The First Parties shall as soon as conveniently may be after obtaining the sanction of Parliament as after mentioned transfer and dispoise to the Second Parties the several lands and premises with all the rights and pertinents thereof held and administered by the First Parties under the respective title deeds namely (1) the subjects known as the Royal Victoria Hospital for Consumption at Craighleith Edinburgh and described in disposition by Miss Mary Ramsay Gibson Maitland

A.D. 1916. of Barnton Sauchie and Bannockburn residing at Sauchieburn in the county of Stirling in favour of the said Charles John Guthrie and others as trustees foresaid dated 19th and recorded in the division of the General Register of Sasines applicable to the county of Edinburgh the 29th both days of July 1899 (2) the subjects in Spittal Street Edinburgh known as the Tuberculosis Dispensary as described in disposition by Robert Graham Murdoch No. 9 Gillespie Crescent Edinburgh and others as trustees for St. Cuthbert's United Free Church Congregation Edinburgh in favour of the said Charles John Guthrie and others as trustees foresaid dated 10th and recorded in said division of the General Register of Sasines 15th both days of August 1911 and (3) the subjects in the parish of Lasswade and county of Edinburgh used as a farm colony in connexion with the said hospital as described in disposition by Robert Sharp wine and spirit merchant residing at Springfield Polton in favour of the said Charles John Guthrie and others as trustees foresaid dated 10th and recorded in said division of the General Register of Sasines 11th both days of November 1909 and that under the respective burdens and conditions contained in the title deeds and with the furnishings and equipment belonging to the First Parties used in connexion with the said subjects.

Second. The consideration for the said transfer shall be (1) the Second Parties undertake that they will hold administer and carry on the institutions so transferred for the purposes for which they were severally established as aforesaid and that for a period of seven years from the date of such transfer (unless with the approval of Sir Robert William Philip) the Royal Victoria Hospital and the farm colony shall not be used for the treatment of cases of pulmonary tuberculosis in an advanced stage at the date of admission but the farm colony may also be used for the residence of convalescent tuberculous patients from the other corporation hospitals (2) the Second Parties shall take over as many of the medical staff nurses and others employed by the First Parties in connexion with the said hospital dispensary and farm colony as may be willing to enter the Corporation service and thereafter such staff and other employees shall form part of the public health department and be under the administration of the Second Parties on the usual conditions of the Corporation service but in no case shall any of such employees have less remuneration from the Corporation than has been received by them respectively from the First Parties prior to the date hereof and the Second Parties shall relieve the First Parties of their obligations to the said staff under any agreements existing at the date hereof and (3) the Second Parties shall relieve the First Parties of the obligation of the sum of £6,000 secured over the said subjects at Craighleith with the interest thereon and also of the obligation for the sum of £7,000 or thereby being

the amount of debt incurred and due by the First Parties in connexion with the provision equipment and maintenance of the said dispensary and farm colony and for such interest as may have accrued thereon at the date hereof. A.D. 1916.

Third Any sums which may have prior to the date hereof been received by the First Parties from Government in contribution towards the cost of providing and equipping the said institutions or any of them so far as the same may not have been applied in reduction of the debt mentioned in article second hereof shall be so applied and any such sums or contributions which may be so received by the First Parties after the date hereof shall be likewise so applied. The Second Parties after entering upon the administration of the said institutions under these presents shall be entitled to apply for uplift and discharge any sums or contributions from Government to which they may be entitled as having provided or having come in place of the parties who did provide and equip the foresaid institutions for said purposes.

Fourth Inasmuch as the constitution of the Royal Victoria Hospital contemplates and provides for other objects besides those attained by the establishment equipment and maintenance of the said hospital at Craighleith dispensary and farm colony and among other things for promoting the advancement of medical and surgical science with reference to consumption and allied diseases and the First Parties are in possession of certain invested or lying funds which would be applicable to such objects and certain gifts and bequests have been intimated and there is reason to believe that further gifts and bequests may hereafter be made to the Royal Victoria Hospital which would likewise be applicable thereto and it is desirable that the existing constitution of the Royal Victoria Hospital should continue for the purpose of administering such invested or lying funds and gifts and bequests therefore notwithstanding the transfer by the First Parties to the Second Parties of the hospital at Craighleith the dispensary and the farm colony as hereinbefore provided the First Parties shall continue to act under the said constitution and rules of the Royal Victoria Hospital in furtherance of the objects contemplated therein in so far as these are outside the purposes powers and duties of the Second Parties as local authority and shall be styled the Royal Victoria Hospital Tuberculosis Trust. They shall retain as their property and at their absolute disposal the invested or lying funds now held by or vested in them and they shall be entitled to receive and shall receive any funds which may hereafter be gifted or which may be bequeathed by persons dying after the date hereof to the Royal Victoria Hospital or the said First Parties (unless the donors or testators expressly destine the same for the work carried on by the Second Parties in the said institutions in which case such gifts or

A.D. 1916. legacies shall be received by the Second Parties) such funds gifts and bequests to be administered and applied by them according to their sole discretion towards the objects contemplated by the said constitution and rules including if they are so advised the establishment of a chair or lectureship in the University of Edinburgh but excluding such purposes as fall within the powers and duties of the Second Parties as local authority or those of the burgh of Edinburgh insurance committee.

Fifth In respect that the Royal Victoria Hospital tuberculosis dispensary and farm colony have in the past afforded to students of medicine unique facilities for the study of tuberculosis the Second Parties shall in the event of the University of Edinburgh establishing a chair or lectureship in relation to tuberculosis give all reasonable facilities under regulations to be made by them from time to time for the purpose of the teaching of such chair or lectureship in connexion with the work carried on by the Second Parties in the said hospital dispensary and farm colony and for the purpose of research So far as practicable and without interfering with the work carried on by the Second Parties at the time in the said institutions transferred as aforesaid they shall allow the existing classroom museum laboratory and library at the dispensary to be used by the professor or lecturer and students in connexion with the said teaching or research jointly with the Second Parties and their dispensary staff or any other persons who may have their permission under such regulations as the Second Parties may from time to time make but the Second Parties shall not be bound to renew improve or extend the existing classroom museum laboratory and library for the purposes of the professor lecturer or students further or otherwise than the Second Parties for their own purposes may think proper And if the professor lecturer or students shall avail themselves of said accommodation the University shall relieve the Second Parties of or repay to them the expense incurred for lighting heating cleaning and attendance or other outlay in connexion with such use for teaching and research purposes Irrespective of whether or not a chair or lectureship is established as aforesaid Sir Robert William Philip shall have the same rights and facilities for the purpose of teaching or research as are by this clause provided for the professor or lecturer if and when appointed.

Sixth In respect of Sir Robert William Philip's close association with the establishment and conduct of these institutions during twenty-five years and also in respect that he has already been appointed by the Corporation and the burgh of Edinburgh insurance committee respectively to act as consultant and expert adviser under the agreement entered into between the Second Parties and the burgh of Edinburgh insurance committee (which agreement is referred to for its terms) he shall to such extent as he may find convenient and subject to the instructions

A.D. 1916.

and administrative control of the Second Parties act as consulting tuberculosis officer in relation to the tuberculosis dispensary and as consulting physician at the Royal Victoria Hospital and the farm colony so long as he holds his said appointment as consultant under said agreement. The medical officer of health being the chief administrative officer in carrying out the whole scheme for the prevention and treatment of tuberculous disease in the city the duties of Sir Robert William Philip under this clause may be described generally as follows namely (1) He shall regularly visit the Royal Victoria Hospital the farm colony and the dispensary and satisfy himself that the purposes of these institutions are being fulfilled and shall report periodically to the public health committee regarding the work (2) He shall direct the medical care and treatment of the patients in the Royal Victoria Hospital and those resident at the farm colony (3) The work at the dispensary shall be carried on by the acting tuberculosis officer (Dr. Guy or his successor) in conference with and with the advice of Sir Robert William Philip as consultant and expert adviser (4) As consulting tuberculosis officer Sir Robert William Philip shall at all times be available for consultation in matters concerning diagnosis and treatment to the public health committee medical officer of health or the acting tuberculosis officer and also to the medical practitioners of the city in charge of tuberculous cases under the domiciliary provisions of the National Insurance Act 1911.

Seventh From and after the entry of the Second Parties to the foresaid dispensary under these presents they shall take the place of the First Parties in the work of the dispensary under the agreement between the parties hereto of date 1st and 4th July 1913 and be entitled to retain and apply the sum of £1,000 per annum therein mentioned and the one-half of the said sum which the burgh of Edinburgh insurance committee are bound to pay under the foresaid agreement between the Second Parties and the said committee shall continue to be payable in the same way as if these presents had not been granted.

Eighth The Second Parties shall apply to Parliament as soon as conveniently may be for confirmation hereof and for authority and sanction to the First Parties to carry out the said transfer and any agreement which the First Parties may make with the university or other parties as aforesaid. The conveyance of the said lands and premises by the First Parties to the Second Parties shall be executed and delivered and the entry of the Second Parties under the same shall be given within one month after the confirmation of Parliament is obtained as aforesaid. This agreement is subject to such alterations as the Secretary for Scotland or Parliament may make thereon and should any such alteration be made thereon as may in the opinion of the Dean of Faculty of Advocates for the time being be material thereto either of the parties may withdraw therefrom.

A.D. 1916.
—

Ninth In the event of any difference of opinion arising between the parties hereto as to the intent or meaning of these presents or the carrying out thereof such difference is hereby submitted and referred to the amicable decision of the Dean of the Faculty of Advocates for the time being as sole arbiter whose decision shall be final and conclusive.

Lastly The whole parties hereto consent to the registration hereof for preservation In witness whereof these presents consisting of this and the four preceding pages are subscribed in duplicate at Edinburgh as follows By the said the Honourable Charles John Guthrie as trustee foresaid on the 10th day of July 1914 before these witnesses Lawrence Anderson Guthrie writer to the signet Edinburgh and Lawrence Bruce Bell chartered accountant there By the said Robert Russell Simpson as trustee foresaid on the 15th day of the month and year last mentioned before these witnesses Samuel Raleigh Simpson writer to the signet Edinburgh and William Hall clerk to Messieurs R. R. Simpson and Lawson writers to the signet there By the said Charles Cook as trustee foresaid on the 16th day of said month and year before these witnesses Henry Austen Glass and Duncan Forbes M'Laren both clerks to Messieurs W. and J. Cook writers to the signet Edinburgh By the said James Mylne as trustee foresaid on the 21st day of said month and year before these witnesses James Graham Mylne and Archibald Brown Campbell both writers to the signet Edinburgh And by the Right Honourable Robert Kirk Inches Lord Provost and Sir Thomas Hunter writer to the signet town clerk both of Edinburgh in name and by authority of the said lord provost magistrates and remanent members of council present in council on the 28th day of said month and year before these witnesses William Gray Miller and Donald Cameron both clerks to the said Sir Thomas Hunter (Signed) Charles J. Guthrie R. R. Simpson Charles Cook James Mylne Robert K. Inches Lord Provost Thomas Hunter town clerk L. A. Guthrie witness L. B. Bell witness S. Raleigh Simpson witness Will. Hall witness H. A. Glass witness Duncan F. M'Laren witness J. G. Mylne witness A. B. Campbell witness Wm. G. Miller witness Don. Cameron witness

Printed by EYRE and SPOTTISWOODE, LIMITED,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

To be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LIMITED, 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LIMITED, 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America and other Foreign Countries of
T. FISHER UNWIN, LIMITED, LONDON, W.C.